

FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL

Jatkhedhi, NH-12, Hoshangabad Road, Bhopal-462026

EXAMINATION SCHEME

L L.B., Semester - II

Subject wise marks allotted and corresponding credits

S. No.	Subject Code	Name of Subject	Marks Allotted						Total Marks	Credit/Contact Hours Per Week			Total Credit
			Theory		Internal Assignment		Practical / Viva-Voice			L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks					
01.	LLB-201	Law of Contract -II	80	32	20	8	0	0	100	5	1	0	6
02.	LLB-202	Law of Crimes - II (Bhartiya Nagrik Suraksha Sanhita - 2023)	80	32	20	8	0	0	100	5	1	0	6
03.	LLB-203	Indian Legal & Consttutional History	80	32	20	8	0	0	100	5	1	0	6
04.	LLB-204	Family Law -II (Muslim Law)	80	32	20	8	0	0	100	5	1	0	6
05.	LLB-205	Property Law & Easement	80	32	20	8	0	0	100	5	1	0	6
06.	LLB-206	General English, Legal Language & Legal Writing	80	32	20	8	0	0	100	5	1	0	6
Total			480	192	120	48	0	0	600	30	6	0	36

L : Lecture

T : Tutorial

P : Practical

REGISTRAR
Bhabha University, Bhopal

L.L.B. PART-I SEMESTER - II
PAPER – I LAW OF CONTRACT – II

UNIT - I INDEMNITY:-

1. The concept.
2. Need for indemnity to facilitate commercial transactions.
3. Method of creating indemnity obligations.
4. Definition of indemnity.
5. Nature and extent of liability of the indemnifier.
6. Commencement of liability of the indemnifier.
7. Situations of various types of indemnity creations.
8. Documents/ agreements of indemnity.
9. Nature of indemnity clauses.
10. Indemnity in case of international transactions.
11. Indemnity by governments during interstate transactions.

UNIT – II GUARANTEE:-

1. The concepts.
2. Definition of guarantee: as distinguished from indemnity.
3. Basic essentials for a valid guarantee contract.
4. The place of consideration and the criteria for ascertaining the existence of consideration in guarantee contracts.
5. Position of minor and validity of guarantee when minor is the principal debtor, creditor or surety.
6. Continuing guarantee.
7. Nature of surety's liability.
8. Duration and termination of such liability.
9. Illustrative situations of existence of continuing guarantee.
10. Creation and identification of continuing guarantee.
11. Letters of credit and bank guarantee as instances of guarantee transaction.
12. Right of surety.
13. Position of surety in the eye of law.
14. Various judicial interpretations to protect the surety.
15. Co-surety and manner of sharing liabilities and rights.
16. Extent of surety's liability.
17. Discharge of surety's liability.

UNIT - III BAILMENT:- Identification of bailment contracts in day today life.

1. Manner of creation of such contracts.
2. Commercial utility of bailment contracts.
3. Definition of bailment.
4. Kinds of bailment.
5. Duties of bailor and bailee towards each other.
6. Rights of bailor and bailee.
7. Finder of goods as bailee.
8. Obligation to keep the goods safe.
9. Right to dispose of the goods.

PLEDGE:-

1. Pledge: comparison with bailment.
2. Commercial utility of pledge transactions.
3. Definition of pledge under the Indian contract Act.
4. Other statutory regulations (State & Centre) regarding pledge, reasons for the same.
5. Rights of the pawner and pawnee.
6. Pownee's right of sale as compared to that of an ordinary bailee.
7. Pledge by certain specified persons mentioned in the Indian Contract Act.

UNIT - IV AGENCY:-

1. Identification of different kinds of agency transactions in day to day life in the commercial world.
2. Kinds of agents and agencies.
3. Distinction between agent and servant.
4. Essential of agency transaction.
5. Various methods of creation of agency.
6. Delegation.
7. Duties and rights of agent.
8. Scope and extent of agent's authority.
9. Liability of the principal for acts of the agent including misconduct and tort of the agent.
10. Liability of the agent towards the principal.
11. Personal liability towards the parties.
12. Methods of termination of agency contract.
13. Liability of the principal and agent before and after such termination.

UNIT - V SALE OF GOODS:-

1. Concepts of sale as a contract.
2. Illustrative instances of sale of goods and the nature of such contracts.
3. Essentials of contract sale.
4. Essential conditions in every contract of sale.
5. Implied terms in contract sale.
6. The rule of caveat emptor and the exception there to under the sale of goods Act.
7. Changing contracts of caveat emptor.
8. Effect and meaning of implied warranties in the sale.
9. Transfer of title and passing of risk.
10. Delivery of goods: various rules regarding delivery of goods.
11. Unpaid seller and his rights.
12. Remedies for breach of contract.

RECOMMENDED BOOKS:-

1. R.K. Abhichandani(ed.) Pollack and Mulla on Contract and Specific Relief Acts(1999) Trpathi, Bombay.
2. Avtar Singh, Contract Act (2000), Eastern Lucknow.
3. Kishnan Nair, Law of Contract,(1999) Orient.
4. Avtar Singh, Principal of the Law of Sale of Goods and hire Purchase (1999).
5. J.P. Verma(ed.) Singh and Gupta. The Law of partnership in India (1999). Orient law house, New delhi.
6. A.G. Guest (ed.), Benjamin's Sale of Goods (1992), sweet & Maxwell.
7. Bhashyam and Adiga, The Negotiable Instruments Act (1995), Bharath, Allahabad
8. M.S. Parthasarathy (ed.) Ansons' Law of Contract, (1998), Oxford, London
9. Saharaya, H.K. Indian Partnership and sale of Goods Act (2000), Universal
10. Ramaninga, The Sales of Goods Act (1998), Universal.

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LL.B. PART - I SEMESTER - II

PAPER - II LAW OF CRIMES -II (B.N.N.S.)

Bhartiya Nagarik Suraksha Sanhita 2023

Unit - I

Basic Concepts of Criminal Procedure Laws and Constitution of Criminal Courts (Section 1-33)

1. Introduction to Criminal Procedure
 - a. Definition and scope
 - b. Historical development and significance of criminal procedure law
2. General Principles of Criminal Procedure
 - a. Due process of law
 - b. Rights of the accused
 - c. Principles of natural justice
3. Hierarchy of Criminal Courts
 - a. Structure and organisation of criminal courts
 - b. Jurisdiction and powers of various courts
4. Role of Police and Prosecution
 - a. Powers and functions of police in criminal investigation
 - b. Role and responsibilities of public prosecutors
5. Fundamental Rights and constitutional provisions related to Criminal Proceedings
 - a. Right to fair trial
 - b. Right to legal representation
 - c. Right against self-incrimination
6. Preliminary
7. Constitution of Criminal Courts and Offices
8. Power of Courts

Unit - II

Offices and Pre-Trial Procedures (Sections 34-288)

1. Arrest of Persons
2. Processes to Compel Appearance
3. Process to Compel Production of Things
4. Reciprocal Arrangements for Assistance
5. Information to the Police and Their Powers to Investigate

Unit -III

Trial Procedures (Sections 197-338)

1. Jurisdiction of the Criminal Courts in Inquiries and Trials
2. Conditions Requisite for Initiation of Proceedings
3. Complaints to Magistrates
4. Commencement of Proceedings Before Magistrates
5. The Charge
6. Trial Before a Court of Session
7. Trial of Warrant-Cases by Magistrates
8. Trial of Summons-Cases by Magistrates
9. Summary Trials

Unit - IV

Post-Trial Procedures and other general provisions (Sections 289-406)

1. Plea Bargaining
2. Attendance of Persons Confined or Detained in Prisons
3. Evidence in Inquiries and Trials
4. General Provisions as to Inquiries and Trials
5. Accused persons with mental illness
6. Provisions as to offences affecting the administration of justice

Unit - V

Sentencing, Appeals, and Miscellaneous Provisions (Sections 407-533)

1. Submission of Death Sentences for Confirmation
2. Appeals
3. Reference and Revision
4. Transfer of Criminal Cases
5. Execution, Suspension, Remission, and Commutation of Sentences
6. Provisions as to Bail and Bonds
7. Disposal of Property
8. Irregular Proceedings
9. Limitation for Taking Cognizance of Certain Offences
10. Miscellaneous Provisions.

Suggested Readings

1. J K Verma, Bharatiya Nagarik Suraksha Sanhita, 2023 (Criminal Procedure) : A Commentary (Eastern Book Company) (2024).
2. S K Misra & Nandini Agarwal, Law of Criminal Procedure in India (Allahabad Law Agency) (2024).
3. K.N.Chandrsekharan Pillai (Rev.), R. V. Kelkar's Criminal Procedure (2021).
4. Ratanlal And Dhirajlal, The Code Of Criminal Procedure - As Amended By The Criminal Law (Amendment) Act, 2013 (LexisNexis)(2017).
5. N.K. Acharya, Guide to Criminal Law and Procedure (Asia Law House)(2022)

L.L.B. PART-I SEMESTER - II
PAPER – III INDIAN LEGAL AND CONSTITUTIONAL

UNIT- I HISTORY OF COURTS:-

Law during Muslim period charter of 1600 administration of justice in the three presidency. Mayors courts admiralty courts development through charters of 1753, 1813, 1833 and 1853 formation of high court (1861) regulating act of 1773 Supreme Court of Calcutta. Act of settlement 1781 grant of diwani and adalat system plan of warren hastings, judicial reforms by various governor generals history of appeals from India to privy council (all charters from 1600).

UNIT- II HISTORY OF LEGISLATION & LEGAL PROFESSION:-

Legislation and compilation of laws history of civil & criminal laws before Indian penal code, role played by principle of justice equity and good conscience, codification of laws history of legal profession comparison of vakils mukhtrs & advocates in India history of laws reporting & history of legal education in India.

UNIT- III

Early constitutional developments Indian council act 1861 Govt. of India Act 1909, 1919, 1935 crripps mission, cabinet mission small plan of 1945 formation of constituent assembly and provisional governments mount batton plan and Indian independence act 1947.

UNIT-IV

Drafting of constitution development in Indian states adoption of constitution salient features of Indian constitution need for review.

UNIT- V LEADING CASES:-

1. Nand Kumar Trial, 1775
2. Patna Case, (1777- 1779)
3. Cassijurah, 1779.

RECOMMENDED BOOKS:-

1. M.P. Jain : Outlines of Indian legal history
2. V.D. Mahajan : Indian Constitutional history
3. V.D. Kulshreshta : Land marks in Indian constitutional history
4. एम. पी. जैन : भारतीय विधि का इतिहास
5. शारंगल : भारतीय की संवैधानिक विधि
6. त्रिपाठी : भारत का संवैधानिक एवं संवैधानिक इतिहास

L.L.B. PART-I SEMESTER - II
PAPER – IV FAMILY LAW - II (MUSLIM LAW)

UNIT-I

Origin and development of Muslim who is Muslim, conversion to Islam nature and history of Mohammedan law, school of Muslim law and sources of Muslim law Siya and Sunnie.

UNIT-II

Marriage, iddet, muta marriage, option of poverty divorce, dissolution of marriage act 1939.

UNIT-III

1. Guardianship- elements, types.
2. Maintenance, liability mehar-types.

UNIT-IV

Wills, gift, doctrine of musha pre-emption, wakf.

UNIT-V

Parentage and acknowledgement, succession and death bed transaction.

RECOMMENDED BOOKS:-

1. Akil Ahmed- Mohammedam Law
2. Mulla- Mohammedan Law
3. Dr. Paras Diwan – Muslim Law in modern India
4. Aquil Ahmed- Mohammedan Law
5. Fyzee- Introduction to Mohammedan Law.
6. Schat : Mohammedan Jurisprudence
7. Coulson : Principles of Mohammedan
8. Jhavala : Principles of Mohammedan law
9. माय : मुस्लिम विधि
10. पारस दीवान : आधुनिक मुस्लिम विधि
11. शुक्ला : भारतीय उत्तराधिकार अधिनियम

L.L.B. PART-I SEMESTER - II
PAPER – V PROPERTY LAW AND EASEMENT

UNIT – I INTRODUCTION:-

Concept and meaning of property, various definition given under transfer of property act, kinds of property- movable and immovable property- tangible and intangible property- intellectual property, copyright- patents and designs, trademarks.

UNIT - II

Law relating to transfer of property under transfer of property act, 1882. General principles of transfer of property whether movable or immovable (Sec. 5 to 37).

UNIT - III

General principles of transfer of immovable property sale, mortgage (Sec. 38 to 53 "A")

UNIT – IV

Gift, leases, exchange actionable claims.

UNIT - V

Easement nature, characteristics, definition and essentials creation of easements, kinds riparian right, extinction, suspension and revival of licenses.

RECOMMENDED BOOKS:-

1. Mulla- Transfer of Property Act.
2. V.P. Sarthy- Transfer of Property.
3. R.K.Sinha- Law of Transfer of Property.
4. N.K. Jhabwala- The Indian Easement Act.

L.L.B. PART-I SEMESTER - II
PAPER – VI GENERAL ENGLISH,
LEGAL LANGUAGE AND LEGAL WRITING

UNIT - I Grammar

Simple, compound, complex sentences, Tense, Phrase and Clause, Active – Passive, Positive-Negative, Interrogative, Reported Speech, Conditionals.

Phonetics Theory and Practice

The phonetics Script, Reading exercises – stress, accent and intonation suitable for Indian speaker with emphasis on clarity speech and felicity of expression.

UNIT - II

Introduction to Legal Language

Characteristics of Legal Language, History of legal Language, Legal Language in India

UNIT - III Legal Terminology

Terms used in civil law and criminal law, Latin word and expressions – law register, General Juristic Writings in English

UNIT - IV Fundamental Principles of Legal Writing

Concision – clarity cogency – simplicity of structure, Brief writing and drafting of law reports, Writing of case comments, Essay writing on topics of legal interest

UNIT - V Proficiency in Regional Language

Every student should acquire skills of understanding analysis writing and communication in the regional language, which he has to use in the interaction with the potential clientele. Necessarily the proficiency in the language will contribute in a substantial measure to a successful practice in law. Phrases translation from English to Hindi and Vice Versa practice of Translations of any act from Hindi to English and Vice Versa. Writing reacting and comments on important Legal issues published in Newspaper in Hindi and English. Adding to vocabulary in Hindi and English, Learning local terms used in the courts, local Districts and expressions for various documents and their standard nomenclature. Writing essay in English and Hindi.

BOOKS RECOMMENDED:-

1. Sunil Sharma : General English
2. Sharma : Learning Legal Language – (Hindi and English edition) PHI Learning
3. Dr. Madabhush Shridhar : legal Language
4. Stroud : Judicial Dictionary, 4th ed. 1982
5. Ballantine : Law dictionary (1969)
6. Squires and Numbsur : Legal writing in Nut shell, 1982
7. N.M. Tripathi, Bombay
8. Tripathi : Legal writing Legal Essay and Gen. Eng.
9. Aiyor : Concise Law Dictionary
10. R.L. Jain : Legal writing including Gen. English
11. Prof. Mark wojick : Introduction to legal English) (International Law Institute, Washington)
12. Lord Denning : "Plain English" The closing chapter New Delhi
13. भारत सरकार द्वारा प्रकाशित : विधि शब्दावली
14. बायल : विधिक भाषा लेखन एवं सामान्य अंग्रेजी